

D909

Healthcare Law and Ethics

Armored Drill

8 concepts · 12 items · 4 transfer items

What this is. Every concept in this course's public description, re-asked with more disguise than a practice test uses. Each stem carries facts that do not decide it. Every wrong answer is a named trap.

Source. Scope from the course's public description in the WGU Institutional Catalog (September 2026); items written from the field's standard body of knowledge. No WGU assessment item, course material or proprietary content is used or reproduced. Not affiliated with or endorsed by Western Governors University.

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How to run it

Paper first. Pencil. One pass, no notes, a timer if you want the pressure.

1. **Before you read the options**, fill the strip under the item: the target word (what is actually being asked), and the one fact in the stem that decides it.
2. **Principle before arithmetic**. Name the rule, then compute.
3. **Camouflage**. Most of every stem does not matter. Ask: which single fact decides this?
4. **Inverse pairs are the bait**. If two options are opposites, one of them is the trap built for you.
5. **Mark sure, unsure or guess** honestly. Sure-and-wrong is the most valuable miss on the page — it is a wrong mental model.
6. **Absolutes** (always, never, guarantee) are usually wrong. And recognizing an answer is not the same as owning it.
7. Items with a **heavy black bar** on the left are **transfer items**: the same principle, reversed or solved for a different variable.
8. Stop at the STOP page. Then grade, fill the triage grid, and tally the traps you fell for. The biggest tally is what you drill next.

The strip, filled in, looks like this:

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	_____	

Items

1.

A 68-year-old retired engineer with full decision-making capacity, who has been treated at the same hospital for 20 years, declines a recommended amputation after the risks are explained. The hospital recently opened a wound-care center. His surgeon believes surgery is clearly in his best interest. Which principle requires the team to respect his refusal?

- A. Beneficence
- B. Justice
- C. Nonmaleficence, which always overrides a patient's wishes
- D. Autonomy

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

2. [TRANSFER — reversed stem / different variable]

A hospital ethics committee adopts a policy that scarce ICU beds go by medical need and likelihood of benefit, not by insurance type or social status. Which principle does the policy mainly express?

- A. None, since bed allocation is only a financial decision
- B. Justice
- C. Autonomy
- D. Beneficence

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

3.

Before an elective knee replacement at a surgery center with a five-star online rating, a surgeon explains the procedure and its benefits, then has the patient sign a consent form. The patient is a former nurse. What makes this consent incomplete?

- A. The risks and the alternatives, including not having surgery, were not discussed
- B. Nothing, because the signed form is the informed consent
- C. Nothing, because a former nurse already knows the risks
- D. A family member also needed to sign

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

4.

A nurse at a Magnet-designated hospital gives a patient the wrong medication. The error is caught, the patient is monitored, and he suffers no injury and needs no added treatment. The nurse had worked a 12-hour shift. Can the patient win a negligence lawsuit?

- A. Yes, because the nurse breached the standard of care
- B. Yes, because a 12-hour shift proves the error was negligent
- C. No, because the damages element is missing
- D. No, because hospitals are never liable for nurses' errors

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

5. [TRANSFER — reversed stem / different variable]

A patient develops an infection after surgery and sues. The surgeon owed a duty and the patient was harmed, but expert review shows sterile technique fully met the standard of care. Which negligence element fails?

- A. Duty
- B. Causation
- C. None, because any bad outcome proves negligence
- D. Breach

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

6.

An unconscious 80-year-old patient at a hospital with a new palliative care team has a valid health care power of attorney naming her niece. Her two adult sons, who visit daily and live nearby, disagree with the niece's decision. The patient was a longtime church volunteer. Whose decision guides her care?

- A. The sons, because they visit daily
- B. The sons, because adult children rank first
- C. The attending physician alone
- D. The niece, as the named agent, applying the patient's known wishes

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

7.

A hospitalist at a large academic hospital with a new patient tower phones a patient's outside cardiologist to coordinate care after discharge. The patient has not signed any authorization. The cardiologist's office is in another state. Is the disclosure permitted under HIPAA?

- A. Yes; disclosures for treatment are permitted without written authorization
- B. Yes, but the minimum-necessary rule limits it to a one-page summary
- C. No, because the cardiologist is in another state
- D. No; written authorization is always required

Target word _____	The one fact that decides _____	Answer ____	[] sure [] unsure [] guess
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8. [TRANSFER — reversed stem / different variable]

Under HIPAA, which disclosure requires the patient's written authorization?

- A. Sending patient contact information to a drug company to market its products
- B. Sending records to a specialist who is treating the patient
- C. Sending a claim to the patient's insurer
- D. Using records for an internal quality review

Target word _____	The one fact that decides _____	Answer ____	[] sure [] unsure [] guess
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9.

A hospital-employed respiratory therapist at a hospital with a new sleep lab negligently injures a patient while doing her regular duties. She has 10 years of experience. Who can be held liable?

- A. Only the therapist
- B. Both the therapist and the hospital, under respondeat superior
- C. Only the hospital, since employees are never personally liable
- D. Neither, because her experience shows she met the standard

Target word _____	The one fact that decides _____	Answer ____	[] sure [] unsure [] guess
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10.

During a routine visit at a pediatric clinic that recently extended its hours, a nurse sees injuries on a 6-year-old that suggest abuse. The parent, a well-known local business owner, asks that nothing be reported. What is required?

- A.** Honor the parent's request to protect confidentiality
- B.** Report the suspicion to child protective services as a mandated reporter
- C.** Ask the parent's attorney for permission to report
- D.** Wait to report until abuse is proven

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

11.

A surgeon at a teaching hospital with a renowned residency program has consent to repair a patient's left inguinal hernia. During surgery she finds a small, non-urgent right hernia and repairs it as well. The surgery goes well. The patient is a retired judge. Which legal claim is most likely?

- A.** No claim, because surgeons may always extend a procedure
- B.** No claim, because the outcome was good
- C.** Battery
- D.** Negligence

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

12. [TRANSFER — reversed stem / different variable]

Which situation is better framed as negligence rather than battery?

- A.** Any surgical injury, since every injury is battery
- B.** A procedure performed on the wrong patient, who never consented
- C.** A consented procedure performed below the standard of care that injures the patient
- D.** Continuing a procedure after the patient clearly withdraws consent

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

STOP

Answers and dissection follow. Finish every item and every strip first.

Key and dissection

Struck-through text is the camouflage: facts that do not decide the item.

1. Answer D Concept 1

A 68-year-old retired engineer with full decision-making capacity, ~~who has been treated at the same hospital for 20 years~~, declines a recommended amputation after the risks are explained. ~~The hospital recently opened a wound care center.~~ His surgeon believes surgery is clearly in his best interest. Which principle requires the team to respect his refusal?

Target word: governing principle **Decides:** A capable, informed patient is refusing.

A	Confusion set	Beneficence supports the surgery; it does not require honoring the refusal.
B	Adjacent category	Justice concerns fair distribution, not an individual's choice.
C	Absolute language	No principle automatically overrides a capable patient's refusal.
D	Correct	A capable, informed adult has the right to refuse treatment.

2. Answer B Concept 1 • transfer

A hospital ethics committee adopts a policy that scarce ICU beds go by medical need and likelihood of benefit, not by insurance type or social status. Which principle does the policy mainly express?

Target word: principle **Decides:** Fair allocation of a scarce resource.

A	Absolute language	Allocation of scarce care is a core ethical question.
B	Correct	Fair distribution of scarce resources is justice.
C	Adjacent category	Autonomy concerns a patient's own choices, not allocation rules.
D	Confusion set	Doing good for each patient does not by itself settle who gets the bed.

3. Answer A Concept 2

Before an elective knee replacement at a surgery center ~~with a five-star online rating~~, a surgeon explains the procedure and its benefits, then has the patient sign a consent form. ~~The patient is a former nurse.~~ What makes this consent incomplete?

Target word: missing consent element **Decides:** Risks and alternatives were not disclosed.

A	Correct	Informed consent requires disclosure of risks and alternatives.
B	Confusion set	The form documents consent; the disclosure discussion is the consent.
C	Camouflage	Prior training does not remove the duty to disclose.
D	Adjacent category	A capable adult consents for herself.

4. Answer C Concept 3

A nurse at a ~~Magnet-designated~~ hospital gives a patient the wrong medication. The error is caught, the patient is monitored, and he suffers no injury and needs no added treatment. ~~The nurse had worked a 12-hour shift.~~ Can the patient win a negligence lawsuit?

Target word: can the claim succeed **Decides:** No harm resulted.

A	Dropped element	Breach alone is not enough without damages.
B	Camouflage	Shift length does not supply the missing damages.
C	Correct	All four elements are required, and there was no injury.
D	Absolute language	Hospitals can be liable; the claim fails for lack of damages.

5. Answer D Concept 3 • transfer

A patient develops an infection after surgery and sues. The surgeon owed a duty and the patient was harmed, but expert review shows sterile technique fully met the standard of care. Which negligence element fails?

Target word: failing element **Decides:** Care met the standard.

A	Confusion set	The surgeon clearly owed a duty to the patient.
B	Adjacent category	Causation links a breach to harm; here there is no breach to link.
C	Absolute language	Complications can happen without negligence.
D	Correct	Care that meets the standard is not a breach.

6. Answer D Concept 4

An unconscious 80-year-old patient at a hospital ~~with a new palliative care team~~ has a valid health care power of attorney naming her niece. Her two adult sons, ~~who visit daily and live nearby~~, disagree with the niece's decision. ~~The patient was a longtime church volunteer.~~ Whose decision guides her care?

Target word: who decides **Decides:** A legally named agent exists.

A	Camouflage	Visit frequency does not change legal authority.
B	Confusion set	The default family order applies only when no agent is named.
C	Adjacent category	Physicians advise; the agent decides for an incapacitated patient.
D	Correct	A designated agent outranks default family surrogates.

7. Answer A Concept 5

A hospitalist at a large academic hospital ~~with a new patient tower~~ phones a patient's outside cardiologist to coordinate care after discharge. The patient has not signed any authorization. ~~The cardiologist's office is in another state.~~ Is the disclosure permitted under HIPAA?

Target word: permitted or not **Decides:** The disclosure is for treatment.

A	Correct	Treatment, payment, and operations are permitted uses.
B	Confusion set	Minimum necessary does not apply to disclosures between providers for treatment.
C	Camouflage	State lines do not change the treatment exception.
D	Absolute language	TPO disclosures do not need authorization.

8. Answer A Concept 5 • transfer

Under HIPAA, which disclosure requires the patient's written authorization?

Target word: needs authorization **Decides:** Marketing is not TPO.

A	Correct	Marketing uses require written authorization.
B	Inverted operation	Treatment disclosures are permitted without authorization.
C	Confusion set	Payment is a permitted use.
D	Adjacent category	Health care operations are a permitted use.

9. Answer B Concept 6

A hospital-employed respiratory therapist at a hospital ~~with a new sleep lab~~ negligently injures a patient while doing her regular duties. ~~She has 10 years of experience.~~ Who can be held liable?

Target word: who is liable **Decides:** Employee acting within the scope of employment.

A	Dropped element	Drops the employer's vicarious liability.
B	Correct	The employer is vicariously liable, and the employee remains personally liable.
C	Absolute language	Employees remain liable for their own negligence.
D	Camouflage	Experience does not undo a negligent act.

10. Answer B Concept 7

During a routine visit at a pediatric clinic ~~that recently extended its hours~~, a nurse sees injuries on a 6-year-old that suggest abuse. The parent, ~~a well-known local business owner~~, asks that nothing be reported. What is required?

Target word: required action **Decides:** Reasonable suspicion triggers mandatory reporting.

A	Inverted operation	Mandatory reporting overrides confidentiality here.
B	Correct	Suspected child abuse must be reported; confidentiality does not bar it.
C	Adjacent category	The legal duty does not depend on anyone's permission.
D	Dropped element	Drops the standard: reasonable suspicion, not proof, triggers the duty.

11. Answer C Concept 8

A surgeon at a teaching hospital ~~with a renowned residency program~~ has consent to repair a patient's left inguinal hernia. During surgery she finds a small, non-urgent right hernia and repairs it as well. The surgery goes well. ~~The patient is a retired judge.~~ Which legal claim is most likely?

Target word: legal claim **Decides:** A non-urgent procedure done without consent.

A	Absolute language	Extension without consent is allowed only in true emergencies.
B	Dropped element	Drops the missing consent, which is the whole issue.
C	Correct	Performing a non-emergency procedure without consent is battery, even with a good outcome.
D	Confusion set	Negligence needs substandard care causing harm; the issue here is consent.

12. Answer C Concept 8 • transfer

Which situation is better framed as negligence rather than battery?

Target word: negligence example **Decides:** Consent existed, but care fell below standard and caused harm.

A	Absolute language	Most surgical injuries are analyzed as negligence, not battery.
B	Inverted operation	No consent at all points to battery.
C	Correct	Substandard care causing harm, with valid consent, is negligence.
D	Confusion set	Withdrawn consent makes continued touching battery.

Triage grid

Write each item number in the box it belongs to.

	Right	Wrong
Sure	Owned.	Concept inversion — top priority. A wrong mental model; it survives rewording.
Unsure / guess	Recognition, not mastery. Re-drill with the transfer.	Not learned yet.

Trap tally

For every miss, find the letter you chose in the key and tally its trap. The biggest number is the pattern to drill.

Trap	What it does	In this drill	Your misses
Dropped element	Leaves out a required term or step.	4	
Wrong stem number	A figure copied from the prompt that is not the answer.	0	
Adjacent category	The right idea in the wrong bucket.	7	
Inverted operation	Direction flipped: add/subtract, cause/effect, higher/lower.	3	
Absolute language	Always, never, guarantee — where judgment applies.	8	
Confusion set	Every option is real; the test is exact role-matching.	9	
Camouflage	Answers a stem fact that was never the question.	5	

Anchor rows — the concept list

One row per concept: the rule to lock in, the trap that catches people, and the tell in the question that signals it.

#	Concept	Rule	Trap	Tell
1	The four ethical principles	Autonomy respects a capable patient's choices, beneficence promotes good, nonmaleficence avoids harm, and justice distributes care fairly.	Letting the clinician's view of best interest override a capable patient's refusal.	A capable patient refusing care, or a rule for sharing scarce resources.
2	Informed consent is a process	Valid consent requires capacity, voluntariness, and disclosure of the nature, benefits, risks, and alternatives, including doing nothing.	Treating a signature on a form as informed consent.	A consent discussion that leaves out risks or alternatives.
3	Four elements of negligence	A negligence claim needs duty, breach of the standard of care, causation, and damages; missing any one defeats it.	Thinking an error or a bad outcome alone proves negligence.	An error with no harm, or harm with no error.
4	Surrogate decision-making	When a patient lacks capacity, a legally designated agent (health care power of attorney) decides first, using the patient's known wishes; default family surrogates apply only if no agent exists.	Assuming close family automatically outranks a named agent.	A named agent and family members who disagree.
5	HIPAA permitted disclosures	Protected health information may be shared without written authorization for treatment, payment, and health care operations; marketing and most other uses need authorization.	Believing every disclosure needs a signed authorization, or that none do.	Who receives the information and why.
6	Respondeat superior	An employer is vicariously liable for an employee's negligence within the scope of employment, and the employee remains personally liable too.	Thinking liability shifts entirely to the employer or stays entirely with the employee.	An employed clinician injuring a patient during regular duties.
7	Limits of confidentiality	Mandatory reporting (such as suspected child abuse) and duty-to-warn situations override confidentiality; reporting requires reasonable suspicion, not proof.	Waiting for proof or honoring a request not to report.	Signs of abuse and a request to keep quiet.
8	Battery vs. negligence	Touching or treating without consent is battery, an intentional tort, even if the outcome is good; negligence is care below the standard that causes harm.	Believing a good outcome excuses an unconsented procedure.	A procedure that went beyond what the patient agreed to.

Course scope (public description): Healthcare Law and Ethics provides learners with a comprehensive understanding of the legal and ethical principles that govern the healthcare industry. This course explores the complex interplay between law, ethics, and healthcare practices. Learners will gain knowledge and analytical skills needed to navigate legal and ethical challenges in various healthcare settings. Learners will be prepared to address real-world issues related to patient rights, healthcare policy, professional conduct, and the legal responsibilities of healthcare providers and organizations. Learners will complete an ethics case study as a summative project. There are no prerequisites to the course.